

WHACKY AUCTIONS

APP TERMS & CONDITIONS AND MASTER RULES OF AUCTION

Version 1.2 | Effective 18 September 2026

IMPORTANT PAYMENT TERMS

A once-off R10 Yoco payment is normally required to activate bidder verification. As a founding-member promotion, the first 100 recorded Early Access signups receive this activation free. A winning bidder must pay the full displayed amount through the separate winning-order checkout within 2 hours, unless the auction-specific schedule lawfully states another period. A verification payment does not authorise Whacky Auctions to save or automatically debit a card.

1. Parties, scope and acceptance

These terms govern use of the Whacky Auctions website and app and participation in auctions conducted by Whacky Auctions PTY LTD. Registration, bidder verification or a bid constitutes acceptance of these terms, the applicable auction-specific schedule and the lot disclosures. Mandatory law prevails over inconsistent wording.

2. Eligibility and bidder registration

Bidders must be 18 or older and legally capable of contracting. Bidder verification collects name, surname, contact number and ID number, together with age confirmation, login, IP and payment status where needed for security and lawful records. A bid from an unregistered or unverified person is invalid. Authority is required when bidding for another person or entity.

3. Bidder-verification activation

After completing registration, a bidder normally makes a once-off R10 payment through the Yoco-hosted checkout before bidding privileges activate. Whacky Auctions waives this activation fee for the first 100 recorded Early Access signups. Promotional eligibility is determined by the platform signup record and does not remove identity or eligibility checks. Where paid, the fee is non-refundable once verification succeeds except where law requires otherwise. Card data is handled by Yoco; Whacky Auctions does not receive or store the full card number or CVV. This payment is not a deposit and does not authorise recurring or automatic charges.

4. Auction-specific information

Each auction or lot page will display the start and closing times, online location, auctioneer, reserve status, opening bid, increments, buyer premium, VAT treatment, payment deadline, inspection, collection, storage and other applicable terms. Opening bids are not valuations.

5. Reserve and no-reserve lots

A lot may have a reserve unless expressly advertised without reserve. A reserve lot is sold only when the reserve is met or lawfully accepted. No-reserve lots are handled in accordance with section 45 of the Consumer Protection Act and applicable regulations.

6. Bids and bidder responsibility

A bid is an offer to buy. Bidders must review the full listing and keep credentials secure. The platform/server timestamp and audit record determine priority, subject to correction of a proven system error before completion.

7. Rolling two-minute soft close

A valid bid in the final 2 minutes restores a full 2-minute window. Each further valid bid in the renewed final window extends the lot again. Extensions may repeat without a fixed maximum. The server clock and auction log are authoritative.

8. Bid retraction and completion

A bid may be retracted before the sale is completed using the available facility or prompt contact. After the platform records SOLD, WON or an equivalent completed status, the highest qualifying bid is binding, subject to non-waivable legal rights.

9. Purchase price and disclosed charges

The payable amount may include the hammer price, disclosed buyer premium, VAT and disclosed collection, delivery or storage charges. No undisclosed charge will be imposed.

10. Winning-order payment - 2-hour deadline

The winning bidder must make full cleared payment using the Yoco checkout linked to the winning order within 2 hours after the sale completes, unless a different lawful deadline was clearly disclosed before bidding. The website displays the deadline. Returning from checkout does not prove payment; the verified payment-provider confirmation controls. Goods are not released before cleared payment.

11. Purchaser default, relisting and default charge

A purchaser defaults by failing to pay by the displayed deadline, dishonouring or reversing payment, or failing required verification without lawful excuse. After expiry, Whacky Auctions may cancel the sale, remove bidding privileges and re-offer the lot. Any default fee or commission is limited to the **lesser of 10% of the purchase price or the total cost of advertising and conducting the auction plus reasonably incurred additional costs**, and will be reduced where the statutory cap is lower. The fee is not a substitute for other remedies lawfully available and is not charged where prohibited.

12. Condition and inspection

A reasonable inspection opportunity will be provided as stated. Auction goods are sold in their disclosed condition, as-is/voetstoots, to the extent permitted by law. This does not exclude liability that cannot lawfully be excluded, including deliberate misrepresentation or legally actionable non-delivery.

13. Descriptions and photographs

Reasonable care is used in descriptions and photographs. Bidders must consider the full listing. Material errors discovered before completion may be corrected and the lot paused, extended, withdrawn or re-offered where lawful.

14. Collection, ownership and risk

Collection or delivery instructions must be followed. Ownership passes only after cleared payment and lawful release. Risk passes as required by law. Disclosed storage charges may apply after the collection deadline.

15. Technical failures

A proven platform-wide failure may justify pausing, extending, reopening or rerunning an affected lot where lawful and recorded. A bidder device, battery or connectivity failure ordinarily does not undo a completed sale.

16. Prohibited conduct and suspension

False identities, sham bidding, collusion, bid shielding, intimidation, automation abuse, payment fraud and unauthorised access are prohibited. Accounts may be restricted to protect auction integrity, investigate fraud, comply with law or enforce payment obligations.

17. Records, privacy and payment security

Whacky Auctions will retain prescribed bidder and auction records for the legally required period. Personal information is handled under the POPIA Privacy Notice. Full card details remain with the payment provider; Whacky Auctions records payment status, amount, provider reference and audit events.

18. Complaints and governing law

Complaints may be sent to rugs.san88@gmail.com. These terms are governed by South African law, including the Consumer Protection Act 68 of 2008, applicable auction regulations, ECTA and POPIA. Consumers retain access to applicable complaint, tribunal and court processes.

19. Contact details

Whacky Auctions PTY LTD
497 Ontdekkers Road, Florida Hills, Gauteng, South Africa
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20. Legal review

Prepared with reference to section 45 of the Consumer Protection Act and regulations 18-31. Independent South African legal review remains recommended before commercial launch and whenever the payment model or auctioneer arrangements change.